

- to ensure that persons other than employees are not exposed to risks to their health and safety arising from the conduct of the undertaking of the employer (see section 23 of **Occupational Health and Safety Act 2004**).

Failure to comply with either duty is an indictable offence under the **Occupational Health and Safety Act 2004** (see sections 21 and 23, respectively).

- (2) An employer must, so far as is reasonably practicable, eliminate any risk associated with construction work (see regulation 325 of the Occupational Health and Safety Regulations 2017).
- (3) The test for what is ‘reasonably practicable’ is an objective test, i.e. a person is to be judged by the standard of behaviour expected of a reasonable person in the duty-holder’s position who is required to comply with the same duty and is:
 - committed to providing the highest level of protection for people against risks to their health and safety; and
 - proactive in taking measures to protect the health and safety of people.

Note: For more information see the WorkSafe Guideline, *How WorkSafe applies the law in relation to Reasonably Practicable*, November 2007 which contains more information on determining what is ‘reasonably practicable’ and is available at <https://www.worksafe.vic.gov.au/resources/how-worksafe-applies-law-relation-reasonably-practicable>

- (4) Construction work is any work performed in connection with the construction, alteration, conversion, fitting out, commissioning, renovation, refurbishment, decommissioning or demolition of any building or structure, or any similar activity (see regulation 321 of the Occupational Health and Safety Regulations 2017).
- (5) However, all construction work on or adjacent to roadways or railways used by road or rail traffic is prescribed to be high-risk construction work. Other types of high-risk construction work include work where there is a risk of a person falling more than two metres; work involving demolition; work involving a trench or shaft if the excavated depth is more than one and a half metres; work involving a tunnel; work involving movement of powered mobile plant; and work in, over or adjacent to water or other liquids where there is a risk of drowning. These and other types of high-risk construction work are detailed in regulation 322 of the Occupational Health and Safety Regulations 2017.

Note: For more information see *Working safely in the general construction industry*, WorkSafe Victoria, Edition No. 1, Melbourne, February 2008 available at https://content.api.worksafe.vic.gov.au/sites/default/files/2020-09/ISBN-Working-safely-in-the-general-construction-industry-handbook-2008-02_0.pdf

- (6) A safe work method statement is required for all high-risk construction work and the work must be undertaken in accordance with that statement. A safe work statement means a document that:
 - identifies work that is high risk construction work;
 - states the hazards and risks of that work;
 - sufficiently describes measures to control those risks;
 - describes how the risk control measures are to be implemented; and
 - is set out and expressed in a way that is readily accessible and comprehensible to the persons who use it.

See regulations 324 and 327 of the Occupational Health and Safety Regulations 2017.

Note: Information about Safe Work Method Statements: How and when to prepare and use a safe work method statement (SWMS) for high-risk construction work (HRCW), WorkSafe Victoria available at <https://content.api.worksafe.vic.gov.au/sites/default/files/2022-03/ISBN-Safe-work-method-statements-2022-03.pdf>

- (7) If it is not reasonably practicable to eliminate a risk associated with high-risk construction work, the employer must reduce that risk so far as is reasonably practicable by:
 - substituting, for the hazard giving rise to the risk to health and safety, a new activity, procedure, plant, process or substance that gives rise to a lesser risk to health or safety; or